

Stereo. HCJDA 38.

Judgment Sheet.

IN THE LAHORE HIGH COURT

LAHORE HIGH COURT, LAHORE

JUDICIAL DEPARTMENT

W.P.No.23186/20913

Sidra Yasin Versus Mrs. Ishrat Ishaq etc.

Date of Hearing 04.11.2013

Pdpetitioner by Mirza Muhammad Aziz ur Rehman, Advocate.

**Respondents by Mr. Kashif Javed Chaudhry, Advocate with
Muhamamd Iqbal Mehmood, Litigation Officer for
EDO Health Okara and Muhamamd Idress T.O.R.F/W.
Rana Shamshad Khan, AAG.**

Abid Aziz Sheikh J:- This writ petition has been filed by the petitioner against the order dated 05.09.2013 whereby the petitioner's request for grant of NOC for admission to General Nursing Course has been refused.

2. Brief facts of the case are that the petitioner passed Lady Health Visitor ("LHV") final examination for Sessions 2011-12 held in October/November, 2012. As per notification dated 16.03.2013, she passed the said examination in Ist Division by obtaining 596 marks. After passing the examination, the petitioner has not been offered any job by respondent No.6. The Executive Director Officer (Multan) vide letter dated 12.08.2013 informed respondent No.6, that no post of LHV is vacant with the Department. The petitioner was also informed vide letter dated 09.09.2013 from Director General Health Services Punjab, that she should apply for the post of LHV when post will be advertised after lifting of the ban. As no job was offered to the petitioner for more than seven months, therefore, she applied for NOC for taking admission in General Nursing Course in any Nursing School in Punjab. The said NOC was refused vide impugned order dated 05.09.2013 on the ground that as per bond executed by the

petitioner, she is bound to serve the Government of Punjab, Health Department for the period of two years or she should refund the total amount of stipend received by the petitioner during the training. The aforesaid order dated 05.09.2013 is assailed through this writ petition.

3. The learned counsel for the petitioner argued that the petitioner passed her final examination on 16.03.2013; thereafter no post of LHV was offered to the petitioner. Further submitted vide letter dated 12.08.2013 the EDO Health confirmed that no post of LHV is vacant under the control of EDO Multan; that vide order dated 09.09.2013 the Addl. Director Admn., also informed the petitioner that there is a ban on the appointments, therefore, the petitioner should apply for appointment after lifting of ban. Submits that in view of the aforesaid letters, it is clear that no post is available with the department, therefore, the petitioner was entitled for issuance of NOC as required by her to undertake Nursing course. Adds that as per Conditions in Chapter 'F' of the prospectus for the admission of LHV Course, if no post is offered to the petitioner for a period of six months, she will become entitled for the grant of NOC. In this regard reliance is also placed on order dated 23.12.2011 passed by this Court in W.P.No.27462/11. Submits that the impugned order is without lawful authority.

4. Conversely, the learned counsel for the respondents argued that as per bond executed by all students including petitioner, it is mandatory for the student of LHV that after completion of training, the successful student must serve with the Government for two years. Submits that as per Condition F in Chapter of prospectus, the petitioner can only be entitled for NOC if six months have lapsed after she applied for the post to the respondents and these six months are not to be reckon from the date of passing of examination as claimed by the petitioner. Further submits that this position is further clarified through amendment made in Conditions prescribed in Chapter F of the prospectus on 22.1.2013.

5. I have given my anxious consideration to the arguments advanced by the learned counsel for the parties and have also perused the record.

6. It is admitted position that petitioner passed the LHV final examination for Sessions 2011-12 held in October/November, 2012 and as per notification dated 16.03.2013 she passed the said examination in Ist Division by obtaining 596 marks. It is also not denied by the respondents that till to date the petitioner has not been offered any job by the Government of Punjab and the Executive Director Multan vide letter dated 12.08.2013 informed respondent No.6 that no post of LHV is vacant with the department. This fact is also not controverted by the respondents that on formal request of the petitioner she was informed vide letter dated 09.09.2013 from D.G. Health Punjab that no post of LHV is available and she should apply for the post when the same will be advertised after lifting of ban. The only ground for refusal of NOC to the petitioner given in the impugned order dated 05.09.2013 was that she executed a bond to serve the Health Department for a period of two years, therefore, she should either serve the Health Department or refund the total amount of stipend. The aforesaid ground of refusal is not only strange but on the face of it, is totally unreasonable as on one hand the petitioner has been informed that no post of LHV is available with the Health Department and at the same time she has been refused NOC for further studies on the ground that she is required to serve the Health Department.

7. Another important aspect which cropped up during the arguments of the learned counsel for the parties, require judicial adjudication, is that interestingly both the learned counsel for the parties placing reliance on Conditions prescribed in Chapter “ F” of prospectus of training for the admission of LHV course. For ready reference the relevant Conditions of Chapter “F” ibid are reproduced hereunder:-

“7. The successful students shall ordinarily be required to serve in the District/Punjab province from which she was selected for her studies in this institution Provided that if her

services are not required in the said area, she may be required to select any place in the Province of Punjab.”

“8. That the obligor shall be granted diplomas in token of her passing the said examination only after she has put in six months continuous service with the government/Local bodies/Private Originations including Family Planning Organization approved by the Government, failing with the diplomas will be granted on the payment of amount spent by the Government, on her training which comes to Rs.1,48,800/- i.e. stipend at the rate of Rs.6200/- per month, for two years.

“In case the obligator is not offered any post within six months by the competent authority to appoint her or by the Director General Health Services Punjab, Lahore she will be entitled to receive the diplomas provided she submits a written proof to this effect from the competent authority and will be free to serve anywhere in the province/Country abroad.” (The underlining is by me to add emphasis)

8. The learned counsel for the petitioner argued that according to Conditions No.8 of the aforesaid conditions as no post has been offered to the petitioner despite lapse of six months from the date of her passing the examination, therefore, the petitioner is entitled for the NOC. On the other hand, the learned counsel for the respondents also placed reliance on the aforesaid Conditions and argued that six months period prescribed in Condition 8 of aforesaid Conditions under Chapter F will not be counted from the date when petitioner passed her examination but it will be reckon from the date of application of the petitioner for the appointment in the Government Department. The stress of learned counsel for the respondents is that as six months have not been lapsed from her application for appointment against the post, therefore, the petitioner is not entitled for NOC.

9. The bare reading of Condition 7 shows that a successful student is required to serve in the District, Punjab or Province from which she was selected for her studies in the Institution. If her services are not required in the said area, she may be required to select any place in the Province of Punjab. As per Condition 8 the successful student shall be granted diploma in token of her passing

the examination only after she has put in six months continuous service with the Government/Local Government/Private Organization including Family Planning Organization approved by the Government failing which the diploma will be granted on payment of amount spend by the Government on her training. However, Condition 8 also provides an exception, that if the successful candidate is not “offered” any post within six months by the competent authority to appoint her or by the Director General Health Service Punjab, Lahore, she will be entitled to receive his/her diploma subject to written proof to this effect from competent authority and she will be free to serve anywhere in the Province/country or abroad.

10. There is no dispute between the parties that neither any post of LHV is available nor the same was offered to the petitioner till date. The only dispute between the parties is whether period of six months in Condition 8 will commence from the date of application moved by the petitioner for appointment of the post or it will be from the date of result of successful candidate when she became eligible to be appointed as LHV. The right of profession, lawful trade or business is a fundamental right of every citizen as enunciated under Article 18 of the Constitution of Islamic Republic of Pakistan, 1973. Similarly right to education being part of livelihood is also a fundamental right of every citizen prescribed under Article 4 and 25-A of the Constitution. The obtaining of Bond from the petitioner and the Conditions in the prospectus are restricting the aforesaid fundamental rights of the petitioner regarding freedom of profession and education, therefore, the aforesaid Conditions have to be construed very strictly and if at all two interpretations are possible, the one in favour of the successful candidate whose fundamental rights are being restricted through aforesaid Conditions has to be adopted. It is settled principle of construction that every statute is to be interpreted in organic manner and further if any word is not defined in the statute, then ordinary dictionary meaning of the word to be followed. Though

Chapter F is not a part of any statute but the aforesaid general principles of construction are also applicable to the aforesaid Conditions of prospectus. The bare reading of Clause 8 shows that if the successful candidate is not “offered” any post within six months, the candidate will be entitled to be issued diploma and free to serve anywhere. The word “offered” is not defined in the prospectus. *As per Black’s Law Dictionary Eighth Edition, the word “offer” means “The act or an instance of presenting something for acceptance”.* The aforesaid meaning of word “offer” clearly shows that it was for the competent authority to offer the post for acceptance to the successful candidate, regardless of her application for job, within a period of six months from the date when she became eligible to be appointed as LHV after passing of her examination and if no such offer was made within six months, she will become entitled to serve anywhere as per Condition 8. The arguments of learned counsel for the respondents that these six months are to be reckoned from the date when the application for job was moved by the petitioner, is not only misconceived but also contrary to the clear wording of Condition 8 as discussed above. Even otherwise the petitioner has applied for NOC to take admission in General Nursing Course in a Nursing School and not for a job anywhere other than Government Department, therefore, condition 8 is not strictly applicable to such NOC.

11. Another aspect of the matter worth consideration is that the aforesaid Conditions 7 & 8 were further amended vide notification dated 22.01.2013. Though the learned counsel for the respondents admitted that these amendments are not applicable to the case of the petitioner who was in Sessions 2011-12 and it is only apply to Sessions 2012-14, however through the amendment in Condition 7, the successful candidate is now required to apply for the appointment to the District authority. For ready reference the amended in Condition 7 is reproduced hereunder:-

“The successful students shall ordinarily be required to apply for appointment to the District’s Authority, and serve in the District from which she was selected for her studies in

*this institution provided that if her services are not required in the said District, **She may be required to serve in any other neighboring Districts of her division.***”

It is well settled principle of interpretation that generally the amendment is made to bring out change in the state of law unless the amendment is clarificatory or declaratory in nature. The aforesaid amendment in condition 7 proves that the requirement to applying for appointment was not available in the conditions prior to this amendment, which was applicable to the case of the petitioner. In this regard this Court in case of K.G. OLD, Principal, Christian Technical Training Center, Gujranwala vs. Presiding Officer, Punjab Labour court, Northern Zone and 6 others (PLD 1976 Lahore 1097) with regard to amending provisions held that:-

“Going by the rule of interpretation there are certain assumptions that can safely be made. The first is that in the ordinary circumstances the Legislature must be taken to have intended a change in law, for otherwise its effort would be one of futility.”

The above legal position was reiterated by this Court in case of Prime Commercial Bank and others vs. Assistant Commissioner of Income Tax (PTCL 1997 CL. 29).

12. In view of above discussion, this petition is allowed. The impugned order/letter dated 05.09.2013 whereby the petitioner was not granted NOC for taking admission in General Nursing Course is held to be without lawful authority and of no legal effect. The respondent No.6 is directed to issue NOC to the petitioner forthwith so she may be able to get admission in Nursing School.

(ABID AZIZ SHEIKH)
JUDGE

Approved for reporting.

Judge

Raza

